

K.S. PUTTASWAMY vs UNION OF INDIA (2017)

Case Study 8

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K.S. PUTTASWAMY vs UNION OF INDIA

INTRODUCTION

K.S. Puttaswamy vs. Union of India is an important case about Right to Privacy. This case was mainly related to the Aadhaar scheme and people's personal information. K.S. Puttaswamy wanted to know whether privacy is a Fundamental Right under the Constitution. So, the matter was taken to the Supreme Court.

FACTS OF THE CASE

In 2012, there was a retired judge named K.S. Puttaswamy. He had some concerns about the Aadhaar scheme introduced by the government. In Aadhaar, people were giving details like fingerprints, iris information and other personal details.

Puttaswamy felt that people's private information should be protected properly. He was worried about how this information may be collected and used. So, he challenged the issue before the Supreme Court.

The main thing in this case was to decide whether a person has a right to keep his personal life and information private.

LEGAL ISSUES

- Whether Right to Privacy is a Fundamental Right.
- Whether privacy is protected under the Constitution.
- Whether a person's personal information should be protected.
- Whether the government can collect people's private details.
- Whether privacy comes under the Right to Life and Personal Liberty.
- Whether personal information can be used without proper protection.
- Whether people have the right to control their personal information.

JUDGMENT

On 24 August 2017, the Supreme Court gave its judgment through a nine-judge bench. All the judges agreed that Right to Privacy is a Fundamental Right under the Constitution.

The court said that privacy is connected with a person's life, freedom and dignity. It also said that privacy is not only about keeping information secret, but also about a person's personal choices and way of living.

The court made it clear that the government cannot interfere with a person's privacy without proper legal reason. This judgment gave strong protection to the privacy of people in India.

LEGAL PRINCIPLES

- Right to Privacy is a Fundamental Right.
- Every person has a right to keep their personal matters private.
- Privacy is connected with Article 21.
- Personal information should be protected.
- A person's dignity should be respected.
- Government should follow proper law while collecting information.
- Personal data should not be misused.
- People have a right to make their own personal choices.

BUSINESS RELEVANCE

- Companies should keep customer information safely.
- Personal data should not be shared wrongly.
- Businesses should take care while collecting customer details.
- Online companies should give importance to data privacy.
- Customer privacy helps to build trust.

- Banks and digital companies should protect financial information.
- Proper data protection can reduce legal problems.
- Businesses should respect the privacy of their customers.

CONCLUSION

K.S. Puttaswamy vs. Union of India is a important case about Right to Privacy. The Supreme Court clearly said that privacy is a Fundamental Right of every person. This case teaches that personal information and personal choices should be respected. In today's digital world, protecting people's private information is very important.